



Bill Number: H.B. 2379

Werner Floor Amendment

Reference to: EDUCATION Committee Amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires each school district governing board (governing board) member to complete the prescribed training program within 45 days after the first day of the governing board member's term of office, rather than 30 days after taking office.
2. Applies the requirement to complete the training program to each governing board member, rather than only governing board members who have not previously served as a governing board member in Arizona.
3. Requires any individual who is a governing board member on the general effective date and whose term of office expires at least one year after the general effective date to:
 - a) complete the prescribed training program within one year after the general effective date; and
 - b) notify the appropriate county school superintendent of the date on which the governing board member completes the training program.
4. Specifies that any governing board member whose term of office begins after the general effective date must complete the training program within 45 days after the first day of the governing board member's term of office.
5. Defines *training program*.
6. Makes technical and conforming changes.

WERNER FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2379
(Reference to EDUCATION Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
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>>Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~>>Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-302, Arizona Revised Statutes, is amended to
3 read:

4 15-302. Powers and duties

5 A. The county school superintendent shall:

6 1. Distribute all laws, reports, circulars, instructions and forms
7 that the county school superintendent may receive for the use of school
8 officers.

9 2. Record all official acts.

10 3. Appoint governing board members of school districts to fill all
11 vacancies, but the term of the appointment shall be until the next regular
12 election for governing board members, at which time a successor shall be
13 elected to serve the unexpired portion of the term. ~~A person who is~~
14 ~~subject to registration as a sex offender in this state or in any other~~
15 ~~jurisdiction is ineligible for appointment under this paragraph.~~ Within
16 thirty days after notification of a vacancy, the school district governing
17 board may submit up to three names to the county school superintendent for

1 consideration of an appointment to fill the vacancy. The county school
2 superintendent is not required to appoint a governing board member from
3 the list of names submitted by the governing board. The county school
4 superintendent, if the county school superintendent deems it in the best
5 interest of the community, may call a special election to fill the
6 vacancies. If an election is called, the newly elected member shall serve
7 for the remainder of the unexpired portion of the term. A PERSON IS
8 INELIGIBLE FOR APPOINTMENT UNDER THIS PARAGRAPH IF EITHER OF THE FOLLOWING
9 APPLIES:

10 (a) THE PERSON IS SUBJECT TO REGISTRATION AS A SEX OFFENDER IN THIS
11 STATE OR IN ANY OTHER JURISDICTION.

12 (b) THE PERSON IS INELIGIBLE TO BE A CANDIDATE FOR APPOINTMENT TO
13 THE OFFICE OF SCHOOL DISTRICT GOVERNING BOARD MEMBER PURSUANT TO SECTION
14 15-349, SUBSECTION E.

15 4. Make reports, when directed by the superintendent of public
16 instruction, showing matters relating to schools in the county as may be
17 required on the forms furnished by the superintendent of public
18 instruction.

19 5. Have such powers and perform such duties as otherwise prescribed
20 by law.

21 6. On or before October 1 of each year, report to the
22 superintendent of public instruction the amount of monies received from
23 state school funds, special school district taxes and other sources, the
24 total expenditures for school purposes and the balance on hand to the
25 credit of each school district at the close of the school year.

26 7. Contract with the board of supervisors for the board of
27 supervisors to conduct all regular school district elections.

28 8. Be responsible, in cooperation with the school district
29 governing boards and the board of supervisors, for all special school
30 district elections.

31 9. Maintain teacher and administrator certification records of
32 effective dates and expiration dates of teachers' and administrators'
33 certificates in compliance with guidelines prescribed in the uniform
34 system of financial records for those school districts for which the
35 county school superintendent is the fiscal agent. The county school
36 superintendent shall not draw a warrant in payment of a teacher's,
37 substitute teacher's or administrator's salary unless the teacher,
38 substitute teacher or administrator is legally certified during the fiscal
39 year in which the term for payment is demanded.

40 10. Notify a school district three years before the expiration of a
41 revenue control limit override that the school district's budget must be
42 adjusted in the final two years of the override pursuant to section
43 15-481, subsections P and Q, if the voters do not approve another
44 override.

45 11. In collaboration with the department of education and other
46 state agencies, assist school districts, charter schools, county free
47 library districts, municipal libraries, nonprofit and public libraries,

1 tribal libraries, private schools and tribal schools on using student
2 data, staff development, curriculum alignment and technology to improve
3 student performance.

4 12. Assist schools in meeting yearly adequate progress goals as
5 defined by criteria established by the state board of education and
6 implemented by the department of education.

7 B. At the request of school districts and charter schools, the
8 county school superintendent may provide discretionary programs in
9 addition to the programs prescribed in subsection A of this section.

10 C. The county school superintendent may:

11 1. Provide the services prescribed in subsections A and B of this
12 section in the county or jointly with two or more counties pursuant to
13 title 11, chapter 7, article 3.

14 2. Review the operations and finances, including expenditures, of
15 any school district that is located in the county.

16 D. Each county school superintendent may establish an advisory
17 committee to the office of the county school superintendent.

18 Sec. 2. Title 15, chapter 3, article 3, Arizona Revised Statutes,
19 is amended by adding section 15-349, to read:

20 15-349. Governing board members; training requirements;
21 annual reports; ineligibility; auditor general
22 approval; joint legislative audit committee hearing
23 and approval

24 A. ~~[AT LEAST ONCE IN EVERY TWO-YEAR PERIOD] [NOT LATER THAN~~
25 ~~{{THIRTY}} {{FORTY-FIVE}} DAYS AFTER {{TAKING}} {{THE FIRST DAY OF A~~
26 ~~SCHOOL DISTRICT GOVERNING BOARD MEMBER'S TERM OF}} OFFICE], {{EACH}}~~
27 ~~{{THE}} GOVERNING BOARD MEMBER {{OF EACH SCHOOL DISTRICT IN THIS STATE~~
28 ~~[WHO HAS NOT PREVIOUSLY SERVED AS A SCHOOL DISTRICT GOVERNING BOARD MEMBER~~
29 ~~IN THIS STATE]}}~~ SHALL COMPLETE A TRAINING PROGRAM THAT INCLUDES A TOTAL
30 OF AT LEAST EIGHT HOURS OF INSTRUCTION ON SCHOOL FINANCE, INCLUDING HOW
31 ALL OF THE FOLLOWING TOPICS RELATE TO SCHOOL FINANCE:

- 32 1. SCHOOL DISTRICT GOVERNANCE.
- 33 2. THE FIDUCIARY DUTIES OF SCHOOL DISTRICT GOVERNING BOARD MEMBERS.
- 34 3. HOW TO DEVELOP, ADOPT AND IMPLEMENT SCHOOL DISTRICT GOVERNING
- 35 BOARD POLICIES.
- 36 4. COMMUNITY ENGAGEMENT AND COLLABORATION WITH STAKEHOLDERS.
- 37 5. STUDENT OUTCOME-FOCUSED SCHOOL DISTRICT GOVERNANCE.
- 38 6. THE LEGAL AND ETHICAL RESPONSIBILITIES OF SCHOOL DISTRICT
- 39 GOVERNING BOARD MEMBERS.
- 40 7. ANY OTHER PROFESSIONAL DEVELOPMENT TOPICS THAT ARE RELEVANT TO
- 41 SERVICE AS A SCHOOL DISTRICT GOVERNING BOARD MEMBER.

42 B. THE COUNTY SCHOOL SUPERINTENDENT OF THE COUNTY IN WHICH A SCHOOL
43 DISTRICT IS LOCATED OR, IF A SCHOOL DISTRICT IS LOCATED IN MORE THAN ONE
44 COUNTY, THE COUNTY SCHOOL SUPERINTENDENT OF THE COUNTY IN WHICH A
45 GOVERNING BOARD MEMBER RESIDES SHALL PROVIDE A TRAINING PROGRAM THAT IS
46 APPROVED BY THE AUDITOR GENERAL AND THAT MEETS THE REQUIREMENTS PRESCRIBED
47 BY SUBSECTION A OF THIS SECTION FOR THE SCHOOL DISTRICT GOVERNING BOARD

1 MEMBERS. A COUNTY SCHOOL SUPERINTENDENT MAY ENTER INTO AN
2 INTERGOVERNMENTAL AGREEMENT OR CONTRACT WITH ANOTHER COUNTY SCHOOL
3 SUPERINTENDENT TO PROVIDE THE TRAINING PROGRAM THROUGH THE OTHER COUNTY
4 SCHOOL SUPERINTENDENT'S OFFICE.

5 C. ON OR BEFORE OCTOBER 1, 2027 AND ~~[EVERY SECOND]~~ [EACH] YEAR
6 THEREAFTER, EACH SCHOOL DISTRICT GOVERNING BOARD MEMBER [WHO WAS ELECTED
7 OR APPOINTED IN THE IMMEDIATELY PRECEDING YEAR ~~{{AND WHO HAS NOT~~
8 ~~PREVIOUSLY SERVED AS A SCHOOL DISTRICT GOVERNING BOARD MEMBER IN THIS~~
9 ~~STATE}}]~~ SHALL NOTIFY THE COUNTY SCHOOL SUPERINTENDENT OF THE COUNTY IN
10 WHICH THE SCHOOL DISTRICT IS LOCATED THE DATE ON WHICH THE GOVERNING BOARD
11 MEMBER COMPLETED THE TRAINING. IF THE SCHOOL DISTRICT IS LOCATED IN MORE
12 THAN ONE COUNTY, THE GOVERNING BOARD MEMBER MAY NOTIFY THE COUNTY SCHOOL
13 SUPERINTENDENT OF THE COUNTY IN WHICH THE GOVERNING BOARD MEMBER RESIDES.
14 ON OR BEFORE NOVEMBER 1, 2027 AND ~~[EVERY SECOND]~~ [EACH] YEAR THEREAFTER,
15 EACH COUNTY SCHOOL SUPERINTENDENT SHALL COMPILER THE NOTIFICATIONS RECEIVED
16 PURSUANT TO THIS SUBSECTION AND SUBMIT A REPORT TO THE STATE BOARD OF
17 EDUCATION THAT INDICATES WHETHER EACH ~~{{[NEWLY ELECTED OR APPOINTED]}}~~
18 SCHOOL DISTRICT GOVERNING BOARD MEMBER ~~{{COMPLETED THE TRAINING}}~~ {{WHO IS
19 REQUIRED TO COMPLETE A TRAINING PROGRAM DURING THE IMMEDIATELY PRECEDING
20 YEAR HAS COMPLIED}}. THE STATE BOARD OF EDUCATION SHALL COMPILER THE
21 REPORTS RECEIVED PURSUANT TO THIS SUBSECTION AND, ON OR BEFORE DECEMBER 1,
22 2027 AND ~~[EVERY SECOND]~~ [EACH] YEAR THEREAFTER, SHALL SUBMIT A REPORT TO
23 THE GOVERNOR, THE PRESIDENT OF THE SENATE, THE SPEAKER OF THE HOUSE OF
24 REPRESENTATIVES, THE OFFICE OF THE AUDITOR GENERAL AND THE SUPERINTENDENT
25 OF PUBLIC INSTRUCTION THAT INDICATES WHETHER EACH ~~{{[NEWLY ELECTED OR~~
26 ~~APPOINTED]}}~~ SCHOOL DISTRICT GOVERNING BOARD MEMBER COMPLETED THE
27 TRAINING.

28 D. THE DEPARTMENT OF EDUCATION SHALL PROVIDE A TRAINING PROGRAM
29 THAT IS APPROVED BY THE AUDITOR GENERAL AND THAT MEETS THE REQUIREMENTS
30 PRESCRIBED BY SUBSECTION A OF THIS SECTION FOR EACH SCHOOL DISTRICT
31 GOVERNING BOARD MEMBER WHO [IS REQUIRED TO COMPLETE THE TRAINING
32 PRESCRIBED BY SUBSECTION A OF THIS SECTION AND WHO] HAS NOT COMPLETED A
33 TRAINING PROGRAM THAT IS PROVIDED BY A COUNTY SCHOOL SUPERINTENDENT
34 PURSUANT TO SUBSECTION B OF THIS SECTION ~~[DURING THE CURRENT TWO-YEAR~~
35 ~~PERIOD]~~. THE DEPARTMENT MAY CHARGE EACH SCHOOL DISTRICT FOR THE COST OF
36 PROVIDING THE TRAINING PROGRAM TO THE SCHOOL DISTRICT'S GOVERNING BOARD
37 MEMBERS PURSUANT TO THIS SUBSECTION. EACH SCHOOL DISTRICT SHALL PAY FOR
38 ANY COSTS INCURRED BY THE DEPARTMENT TO PROVIDE THE TRAINING TO THE SCHOOL
39 DISTRICT'S GOVERNING BOARD MEMBERS.

40 E. A GOVERNING BOARD MEMBER WHO FAILS TO ~~[COMPLETE THE TRAINING~~
41 ~~REQUIRED]~~ [COMPLY WITH THE REQUIREMENTS PRESCRIBED] BY [SUBSECTION]
42 [SUBSECTIONS] A [AND C] OF THIS SECTION IS INELIGIBLE TO BE A CANDIDATE
43 FOR NOMINATION, ELECTION OR APPOINTMENT TO THE OFFICE OF GOVERNING BOARD
44 MEMBER IN ANY SCHOOL DISTRICT IN THIS STATE IF THE SCHOOL DISTRICT
45 GOVERNING BOARD MEMBER BOTH:

46 1. WAS NOT APPOINTED TO THE OFFICE OF GOVERNING BOARD MEMBER DURING
47 THE CURRENT TERM.

1 2. IS A MEMBER OF THE SCHOOL DISTRICT GOVERNING BOARD OF A SCHOOL
2 DISTRICT THAT IS IDENTIFIED BY THE AUDITOR GENERAL AS ONE OF THE HIGHEST
3 RISK SCHOOL DISTRICTS IN THIS STATE.

4 F. THE DEPARTMENT OF EDUCATION AND EACH COUNTY SCHOOL
5 SUPERINTENDENT WHO PROVIDES A TRAINING PROGRAM PURSUANT TO SUBSECTION B OF
6 THIS SECTION SHALL SUBMIT THE TRAINING PROGRAM TO THE AUDITOR GENERAL, IN
7 A FORM AND MANNER PRESCRIBED BY THE AUDITOR GENERAL, FOR APPROVAL BEFORE
8 PROVIDING THE TRAINING PROGRAM TO ANY GOVERNING BOARD MEMBER. IF THE
9 AUDITOR GENERAL DISAPPROVES A TRAINING PROGRAM SUBMITTED PURSUANT TO THIS
10 SUBSECTION, THE DEPARTMENT MAY SUBMIT THE TRAINING PROGRAM TO THE JOINT
11 LEGISLATIVE AUDIT COMMITTEE FOR REVIEW AND APPROVAL. THE JOINT LEGISLATIVE
12 AUDIT COMMITTEE MUST HEAR AND APPROVE OR DISAPPROVE THE TRAINING PROGRAM
13 AT THE FIRST REGULAR MEETING AFTER THE PROGRAM IS SUBMITTED PURSUANT TO
14 THIS SUBSECTION. IF THE JOINT LEGISLATIVE AUDIT COMMITTEE APPROVES THE
15 TRAINING PROGRAM BY A MAJORITY VOTE, THE DEPARTMENT MAY PROVIDE THE
16 TRAINING PROGRAM TO ANY GOVERNING BOARD MEMBER WITHOUT APPROVAL FROM THE
17 AUDITOR GENERAL.

18 Sec. 3. Section 15-421, Arizona Revised Statutes, is amended to
19 read:

20 15-421. Governing boards; members; qualifications;
21 prohibitions; candidate statements; definitions

22 A. The governing body of a school district shall be a governing
23 board. There shall be three governing board members, except as otherwise
24 provided by this section and section 15-425, subsection A.

25 B. The governing body of a high school district shall be a
26 governing board composed of:

27 1. In a single district, the governing board members of the common
28 school district.

29 2. In a union high school district, five members.

30 C. A person is eligible for election to the office of governing
31 board member if all of the following apply:

32 1. The person is a registered voter of this state.

33 2. The person has been a resident of the school district for at
34 least one year immediately preceding the day of election.

35 3. The person is not subject to registration as a sex offender in
36 this state or in any other jurisdiction.

37 4. THE PERSON IS NOT INELIGIBLE TO BE A CANDIDATE FOR NOMINATION OR
38 ELECTION TO THE OFFICE OF GOVERNING BOARD MEMBER PURSUANT TO SECTION
39 15-349, SUBSECTION E.

40 D. An employee of a school district, including a person who
41 directly provides certified or classified services to the school district
42 as an employee of a third-party contractor, or the spouse of such an
43 employee may not hold membership on the governing board of a school
44 district by which the employee is employed.

45 E. Notwithstanding subsection D of this section and title 38,
46 chapter 3, article 8, a small school district may employ, including
47 employment through a third-party contractor that provides services to the

1 small school district, a substitute teacher who is related to a member of
2 the governing board as immediate family and who has had the same household
3 of residence within the preceding four years. If a small school district
4 employs a substitute teacher pursuant to this subsection, the member of
5 the governing board who is related to the substitute teacher shall be
6 recused from voting on any matter relating to substitute teachers.

7 F. A school district may employ, including employment through a
8 third-party contractor that provides services to the school district, a
9 person who served as a member of the school district's governing board
10 during the preceding two years only in a position in which the person will
11 provide services directly to students, including as a certificated
12 teacher, a substitute teacher and an employee or contractor who provides
13 transportation, instructional support or student support services. A
14 school district may increase the time period prescribed in this subsection
15 to be more than two years.

16 G. A member of one governing board is ineligible to be a candidate
17 for nomination or election to or serve simultaneously as a member of any
18 other governing board, except that a member of a governing board may be a
19 candidate for nomination or election for any other governing board if the
20 member is serving in the last year of a term of office. A member of a
21 governing board shall resign the member's seat on the governing board
22 before becoming a candidate for nomination or election to the governing
23 board of any other school district, unless the member of the governing
24 board is serving in the last year of a term of office.

25 H. Notwithstanding section 15-511, each county school
26 superintendent shall publish on the superintendent's website the statement
27 of each certified candidate for membership on a school district governing
28 board located in the county. The county school superintendent shall list
29 each school district on the superintendent's website from which a link
30 shall be established to the candidate's name, which shall link to the
31 candidate's statement and photograph. The candidate shall submit the
32 statement to the person at the county school superintendent's office
33 assigned to manage candidate statements, after notice of certification
34 from the county school superintendent's office but not later than
35 twenty-one days before the date that general election early ballots are
36 allowed to be mailed. The person shall post each candidate's statement on
37 the county school superintendent's website not later than fourteen days
38 before the date that general election early ballots are allowed to be
39 mailed. If a candidate does not submit a statement, the county school
40 superintendent's website shall state "no response submitted" for the
41 candidate. The candidate statements shall be posted on the website
42 alphabetically by each school district and by candidate. The candidate
43 statement shall be typewritten or electronically submitted. The county
44 school superintendent shall post the statements verbatim as they are
45 received unless a candidate requests in writing that typographical errors
46 be corrected. The candidate statement shall contain the following items
47 in the same size and format for each candidate:

1 1. A recent photograph of the candidate.

2 2. A statement not to exceed five hundred words.

3 3. A disclosure of any relationships by affinity, by consanguinity
4 or by law to the third degree that exist between the candidate and any
5 current governing board members or other candidates for election to the
6 same governing board.

7 I. Persons related as immediate family who have the same household
8 of residence within four years prior shall not serve simultaneously on the
9 governing board of the same school district if the governing board is
10 composed of five members. For a school district with a student count of
11 at least two hundred fifty that is located in a county with a population
12 of more than five hundred thousand persons, not more than two persons
13 related by affinity, by consanguinity or by law to the third degree shall
14 serve simultaneously on the governing board of the same school district if
15 the governing board is composed of five members. A qualified elector who
16 resides in the school district may bring an action in superior court to
17 enforce this subsection.

18 J. A person related as immediate family who has the same household
19 of residence within four years prior to a member of the governing board of
20 the same school district is ineligible to be a candidate for nomination or
21 election to that governing board if the governing board is composed of
22 five members, except that a person related as immediate family who has the
23 same household of residence within four years prior to a member of a
24 governing board may be a candidate for nomination or election to the
25 governing board of the same school district if the member is serving in
26 the last year of a term of office. For a school district with a student
27 count of at least two hundred fifty that is located in a county with a
28 population of more than five hundred thousand persons, not more than two
29 persons related by affinity, by consanguinity or by law to the third
30 degree shall be eligible to be a candidate for nomination or election to a
31 governing board that is composed of five members. A qualified elector who
32 resides in the school district may bring an action in superior court to
33 enforce this subsection.

34 K. Persons related as immediate family who have the same household
35 of residence within four years prior are ineligible to be simultaneous
36 candidates for nomination or election to the governing board of the same
37 school district if the governing board is composed of five members. For a
38 school district with a student count of at least two hundred fifty that is
39 located in a county with a population of more than five hundred thousand
40 persons, not more than two persons related by affinity, by consanguinity
41 or by law to the third degree shall be simultaneous candidates for
42 nomination or election to a governing board that is composed of five
43 members. A qualified elector who resides in the school district may bring
44 an action in superior court to enforce this subsection.

1 L. For the purposes of this section:

2 1. "Household of residence" means the place of abode during
3 applicable time periods or the residence address used by an individual for
4 voter registration or property tax purposes.

5 2. "Immediate family" means individuals who are married to each
6 other and any children of those individuals.

7 3. "Small school district" has the same meaning prescribed in
8 section 15-901.

9 <<Sec. 4. Existing school district governing board members;
10 training requirements; definition

11 {{A. Notwithstanding section 15-349, Arizona Revised Statutes, as
12 added by this act, any individual who is a member of a school district
13 governing board in this state on the effective date of this act and whose
14 term of office expires on or after one year after the effective date of
15 this act shall both:

16 1. Complete a training program as required by section 15-349,
17 subsection A, Arizona Revised Statutes, as added by this act, not later
18 than one year after the effective date of this act.

19 2. Notify the appropriate county school superintendent of the date
20 on which the governing board member completes the training program as
21 prescribed by section 15-349, subsection C, Arizona Revised Statutes, as
22 added by this act.

23 B. Any school district governing board member in this state whose
24 term of office begins after the effective date of this act shall complete
25 the training program on or before the deadline prescribed by section
26 15-349, subsection A, Arizona Revised Statutes, as added by this act.

27 C. For the purposes of this section, "training program" means a
28 training program that meets the requirements prescribed by section 15-349,
29 subsection A, Arizona Revised Statutes, as added by this act.}}>>

30 Enroll and engross to conform

31 Amend title to conform

CARINE WERNER

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